TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: August 13, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- For additional information, please see the court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at **https://www.occourts.org/media-relations/civil.html** before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and '"Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**.
Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	**All American Diesel & Fleet Services, Inc. vs. Stanley** **2026-01572743**	**Order to Show Cause re: Preliminary Injunction** Plaintiff All American Diesel & Fleet Services, Inc.'s request for a preliminary injunction is GRANTED. The court previously granted Plaintiff's ex parte application for a temporary restraining order and set an OSC re: issuance of a preliminary injunction. "A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, *and* (2) the 'interim harm' to that party if an injunction is denied is greater than 'the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.' [Citations.] These two showings operate on a sliding scale: '[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.' [Citation.]" (*Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183.) The burden is on the party seeking the preliminary injunction to produce evidence demonstrating his entitlement to the injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) A preliminary injunction may be granted upon a verified complaint, as well as other evidence. (See Code Civ. Proc., § 527, subd. (a).) On a request for preliminary injunction, the trial court is the judge of the credibility of the affidavits filed in support of the application for preliminary injunction, and it is in the trial court's province to resolve conflicts in the evidence. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) The court's factual determinations are reviewed for substantial evidence. (*Ibid*.) In assessing whether to grant a preliminary injunction, the court is to apply a two-prong test where the court assess (1) the balance of harms that would result from the issuance/non-issuance of the preliminary injunction and (2) the probable outcome at trial. These two factors are weighed together. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) In other words, if a strong showing is made on one factor, then a relatively lower burden is required as to the other factor to justify issuance of a preliminary injunction. If a preliminary injunction is granted, the court must require an undertaking. (Code Civ. Proc. § 529.) The bond is to cover any damages to the defendant caused by issuance of the injunction, if it is finally determined that plaintiff was not entitled to the injunction. CCP § 529; see *Top Cat Productions, Inc. v. Michael's*

		Los Feliz (2002) 102 Cal.App.4th 474, 478. Plaintiff has established a sufficient probability of prevailing on its Seventh Cause of Action for Violations of Bus. & Prof. Code §17200. Plaintiff has established that Defendants created a parallel business entity to Plaintiff, have interfered with Plaintiff's Google Workspace management, have diverted receipts owed to Plaintiff from Customers to Defendant's own accounts, and that Defendants removed property from Plaintiff's premises and are withholding that property. (See ROA 37 ["Gola decl."] at ¶¶ 10-12 [formation of parallel LLC]; 13-14 [Google Workspace changes]; 17-20 [diversion of customer receipts; 21-26 [taking possession of company property].) Plaintiff has established the irreparable harm that would result if no injunction were in place. (See Gola Decl. ¶¶ 35-40.) Defendant has not made an intelligible factual showing that establishes either (1) a lack of probable validity of Plaintiff's claims; or (2) that Defendant would suffer greater interim harm by the imposition of the injunction that Plaintiff would if no injunction were ordered. Within 5 days Plaintiff shall lodge a proposed preliminary injunction that maintains the same provisions as the temporary restraining order entered on July 1, 2026, except the amount of the required undertaking shall be changed from $10,000 to $50,000. Plaintiff shall post the new undertaking and serve a copy of the signed Order granting the preliminary injunction promptly after the Court signs the order. Plaintiff shall provide notice.
2	**Bavarian vs. Aston Marton Lagonda of North America, Inc.** **2022-01241715**	**Motion for Judgment on the Pleadings** Defendant Aston Marton Lagonda of North America, Inc.'s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion]; *Hightower v. Farmers Ins. Exchange* (1995) 38 Cal.App.4th 853, 858 ["Because a motion for judgment on the pleadings is the functional equivalent of a general demurrer, the same rules apply"].) Moving party's request for judicial notice is DENIED. (*Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 [materials prepared by private parties and merely on file with state agencies are not ordinarily subject to judicial notice pursuant to Evid. Code,

		§ 452, subd. (c); *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374 ["Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning ... The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable;" see also *Hightower v. Farmers Ins. Exchange*, *supra* at 858 [demurrer rules applicable to motion for judgment on the pleadings].) Service is defective. Moving party served the moving papers to the unrepresented plaintiff by electronic service only. However, self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court, Rule 2.251, subd. (c)(3)(B); see also Rule 2.253, subds. (b)(2) [self-represented parties exempt from mandatory e-filing and e-service requirements], (b)(3) ["In civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party ... is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise"].) There is nothing in the court's records indicating plaintiff's affirmative consent to electronic service. The motion is also denied on the merits. The 1st cause of action for fraud states sufficient facts. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [elements], 645 [specific pleading required]; Complaint, ¶¶ 2, 8, 10-12, 17 [misrepresentations, speaker, authority], ¶ 18 [falsity, scienter], ¶¶ 19, 20 [reliance], ¶ 22 [proximately caused damages].) Moving party has not shown that either the 1st cause of action for fraud or 2nd cause of action for negligence is barred by the economic loss rule. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20 ["The rule itself is deceptively easy to state: In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage;" citation omitted.) "Courts generally permit tort suits if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties' contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties' reasonable contemplation when they entered into the contract." (*Id*. at 23.) Here, the Complaint alleges violation of an

independent tort duty (fraud), as well as harm outside of the contract (over 2,286 miles on the vehicle, not necessary for the clutch repair). (Complaint, ¶¶ 9, 11, 18, 19, 21.)

Whether moving party is a separate entity from the dealership, and/or whether the alleged actions / misrepresentations were performed by the dealership and not moving party, is not alleged; to the extent moving party relies on its request for judicial notice in support of such arguments, the request is denied as stated above. (Code Civ. Proc., § 438, subd. (d) ["The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice"]; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 [a demurrer (or other pleading challenge) lies only for defects appearing on the face of the pleading, or from matters outside the pleading properly subject to judicial notice].)

As to punitive damages, since the motion is denied as to the fraud claim, this cause of action is alone sufficient to support punitive damages. (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610 ["Civil Code section 3294 … treats 'oppression, fraud, or malice' as separate bases for imposition of exemplary damages … [a] fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury … [t]he pleading of fraud is sufficient"].)

Moreover, a claim for punitive damages is a remedy, not a separate cause of action (*McLaughlin v. National Union Fire Ins. Co.* (1994) 23 Cal.App.4th 1132, 1164), and thus is not a proper subject for the instant motion under Code Civ. Proc., § 438, subd. (c)(1)(B)(ii) [failure to state "facts sufficient to constitute a cause of action against that defendant"].) Finally, allegedly improper damages allegations should have been addressed via a motion to strike, not a motion for judgment on the pleadings. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 ["a demurrer cannot rightfully be sustained … to a particular type of damage or remedy"]; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"]; see also *Hightower v. Farmers Ins. Exchange, supra* at 858 [demurrer rules applicable to motion for judgment on the pleadings].)

Clerk shall give notice.

3	**Brown vs. Mercedes-Benz USA, LLC** **2026-01562993**	**Motion to Compel Arbitration** *Vacated. See minute order dated 8/12/26.*
4	**Diaz vs. Newrez, LLC** **2025-01477023**	**Demurrer to Amended Complaint** Defendant NEWREZ LLC dba Shellpoint Mortgage Servicing's demurrer to the 1st through 8th causes of action of the First Amended Complaint of Martha Diaz is OVERRULED in part and SUSTAINED in part as follows: The demurrer is overruled as to the 1st, 2nd, 4th, 7th and 8th causes of action. The demurrer is sustained as to the 3rd, 5th and 6th causes of action with ten days leave to amend. Newrez's request for judicial notice is granted. *Case Management Conference is scheduled for January 29, 2027 at 8:30 a.m. in Department C44.* Newrez to give notice.
5	**Moayedi vs. Pellkofer** **2025-01504685**	**Motion to Be Relieved as Counsel of Record (2)** *Hearings vacated. See minute order dated 8/11/26.*
6	**Moran vs. BBB San Diego, LLC** **2025-01518281**	**Motion to Compel Arbitration** Defendant BBB San Diego, dba Ferrari & Maserati of San Diego's Motion to Compel Arbitration is DENIED. Plaintiff's Request for Judicial Notice is DENIED. Defendant moves to compel Plaintiff to arbitration pursuant to the Federal Arbitration Act and the California Arbitration Act. "Under the Federal Arbitration Act (FAA; 9 U.S.C. § 1 et seq.), a written agreement to arbitrate 'shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract ....' (9 U.S.C. § 2.) Unless an exception applies, if the matter is arbitrable, the court "shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the

		agreement ....” (9 U.S.C. § 3.) [I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of California contract law guide the court in making this determination. The party seeking arbitration bears the burden of proving the existence of an arbitration agreement,” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1128.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine *whether the agreement exists* and, if any defense to its enforcement is raised, whether it is enforceable.” (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169; (Code Civ. Proc, § 1281.2.) “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51.) Defendant’s motion is based on three arbitration agreements which Plaintiff executed during his employment, dated January 11, 2021, December 30, 2021, and July 21, 2022. In or about January 2021, when Defendant came under new ownership, it implemented an arbitration agreement as part of its onboarding and employment policies (“First Agreement”). (Chan Decl., ¶ 11.) In or about December 2021, Defendant updated its arbitration agreement and provided the updated agreement to its employees for review (“Second Agreement”). (Chan Decl., ¶ 9.) Defendant again updated its arbitration agreement in or about July 2022 (“Third Agreement”). (Chan Decl., ¶ 11.) The December 30, 2021, Agreement expressly identifies the employer as BBB San Diego, LLC doing business as Ferrari and Maserati of San Diego. The January 11, 2021, and July 21, 2022, Agreements identify the employer as BBB Automotive, LLC. The

parties have agreed that Plaintiff's employer was BBB San Diego, LLC. (Ghozland Decl., ¶ 3, Exh. B.)

Each of the executed Agreements provides that employment-related disputes between Plaintiff and Defendant are to be resolved through binding arbitration. (Chan Decl., ¶ 6, Exs. A–C.)

The first issue to determine is whether Defendant can enforce the arbitration agreements when it was only a signatory to the Second Agreement (December 30, 2021), and not the First or the Third Agreement.

A nonsignatory bears the burden to establish he or she is a party to the arbitration agreement/provision covering the dispute. (*Toothman v. Redwood Toxicology Laboratory, Inc*. (2026) 120 Cal.App.5th 412, 419.) Here, Defendant has offered no legal theory as to why it is entitled to enforce the First and Third Agreements, which identify BBB Automotive, LLC as the employer or "Company," and not Defendant. Defendant offers no explanation in the moving papers concerning the nature of BBB Automotive, LLC's relationship with Defendant, nor does it argue why it is entitled to enforce the arbitration agreements of BBB Automotive, LLC. Mr. Chan states in his declaration that BBB San Diego, dba Ferrari & Maserati of San Diego is a subsidiary of BBB Automotive, LLC, but offers no evidence to substantiate this fact, nor is this assertion addressed in the moving papers. Defendant never argues it can enforce the First or Third Arbitration Agreements as a subsidiary of BBB Automotive, LLC. (See *Paulus vv. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 685 ["Courts will ordinarily treat the appellant's failure to raise an issue in his or her opening brief as a waiver of that challenge."].) Therefore, Defendant has not sustained its burden to establish it can enforce the First or Third Arbitration Agreements.

The next issue to determine is whether Defendant can enforce the Second Agreement which correctly identifies it as the employer or "Company."

Under California law, a subsequently executed written contract addressing the same subject matter supersedes inconsistent provisions in prior agreements. Both Civil Code section 1625 and Code of Civil Procedure section 1856 codify this principle.

In the moving papers, Defendant asserts that the Second Agreement was an update to the First Agreement, and the Third Agreement was an update to the Second Agreement. Thus,

		conceding that the Third Agreement was considered the operative arbitration agreement. As stated above, Defendant cannot enforce the Third Agreement because it is not a signatory to that agreement. Defendant makes no argument that the Second Agreement is enforceable despite the unenforceability of the Third Agreement. For these reasons, the Court finds Defendant has failed to sustain its burden of demonstrating the existence of an agreement to arbitrate. Accordingly, the motion to compel arbitration is DENIED. *Case Management Conference is scheduled for January 29, 2027 at 8:30 a.m. in Department C44.* Clerk to give notice.
7	**White vs. Ford Motor Company** **2025-01459385**	**Motion for Attorney Fees** Plaintiff Russell White's motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Defendant's evidentiary objection no. 23 is SUSTAINED (lacks foundation, authentication). Defendant's evidentiary objection no. 24 is SUSTAINED (relevance). Defendant's remaining evidentiary objections are OVERRULED. Plaintiffs is awarded attorney fees in the amount of **$17,284.50**, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party's attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"].) However, the paralegal rate claimed appears excessive, and the court awards paralegal fees at $150.00 per hour instead. The court has also somewhat reduced the time claimed by moving party's attorneys for time spent on discovery (stayed per Code Civ.

		Proc., §871.26, subd. (e)), for tasks associated with a routine case management conference, and anticipated time in connection with the instant motion, which appear somewhat excessive. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [court's broad authority to determine reasonable fees]; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel's hourly rate]; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for "researching and calendaring all deadlines"].) Otherwise, after review of moving parties' billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 49), and no motion to tax was filed. (Cal. Rules of Court, rule 3.1700, subd. (b)(1) [motion to tax costs must be filed within 15 days after service of the cost memorandum].) Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See *Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 457 ["In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;" other internal citations omitted.) Since plaintiff's costs are already recoverable under the unchallenged Memorandum of Costs, it would be a double recovery to award the same costs in connection with the instant motion. *Order to Show Cause re: Dismissal on Settled Case scheduled for January 29, 2027 at 8:30 a.m. in Department C44.* The court expects a dismissal of the entire case, forthwith, since the issue of attorney's fees has now been resolved. (See Declaration of Anthony P. Greco [ROA 57].) Moving party shall give notice.
8	**Whitewolf vs. Beachwalk Homeowners Association** **2023-01346511**	**Motion for Determination of Good Faith Settlement** Defendant USAA Casualty Insurance Company's Motion for Determination of Good Faith Settlement is GRANTED. Settling Defendant has adequately demonstrated that the settlement amount is within "the ballpark" of their potential proportionate share of

		liability for Plaintiff's total damages. (See *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc*. (1985) 38 Cal. 3d 488, 499.) As an initial matter, it appears that Plaintiff Whitewolf has agreed to a settlement of her claims against Defendant USAA. (See ROA 286 [Bavilsky Decl.] at ¶3, Exh. A [copy of executed settlement and release between Plaintiff and USAA.].) The Court has reviewed the evidence submitted in support of the Motion, and has assessed this evidence in light of the factors identified in *Tech-Bilt*. The Court finds there is substantial evidence supporting the good faith basis of this settlement. Furthermore, the motion is unopposed, and no other party has demonstrated any basis to question that this settlement is genuine. However, the Court does note that the Motion was not served with an adequate period of notice. If Defendant Beachwalk objects to the good faith determination, they may appear at the hearing and raise an objection. Moving Defendant shall provide notice of this ruling.